

24STCV32649 24STCV32649

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Case Number: 24STCV32649 Hearing Date: September 4, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Relief from
Dismissal

The Motion for Relief from Dismissal is denied.

BACKGROUND

Plaintiff Cassandra Anaya (Plaintiff) filed this action against General Motors, LLC (Defendant), alleging that Plaintiff purchased a 2022 Chevrolet Equinox that manifested defects that Defendant was unable to repair under the express warranty accompanying the sale.

The causes of action are: (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement - Concealment.

On May 12, 2026, the date set for the Final Status Conference and Jury Trial, the Court found that Plaintiff was not ready for trial, granted Defendant's oral motion to dismiss under Code of Civil Procedure section 581, subdivision (b)(5), and dismissed the Complaint without prejudice. The Clerk filed an Order of Dismissal. The Court signed and filed a Judgment on June 22, 2026.

Plaintiff filed a Motion for Relief from Dismissal. Defendant filed an Opposition.

LEGAL STANDARD

The court has discretion to relieve a party from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).) "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Ibid.)

Subdivision (b) separately provides for relief without regard to whether the neglect was excusable: "Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Ibid.) "[I]f the prerequisites for the application of the mandatory provision of section 473, subdivision (b) exist, the trial court does not have discretion to refuse relief." (Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 612 (Leader).)

The party seeking discretionary relief must show that the application was made within a reasonable time. "In order to qualify for relief under section 473, the moving party must act diligently in seeking relief and must submit affidavits or testimony demonstrating a reasonable cause for the default." (Elston v. City of Turlock (1985) 38 Cal.3d 227, 234 (Elston).) "The party seeking relief under section 473 must also be diligent." (Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258 (Zamora).)

"[T]he provisions of section 473 of the Code of Civil Procedure are to be liberally construed and sound policy favors the determination of actions on their merits." (Zamora, supra, 28 Cal.4th at p. 256, quoting Riskin v. Towers (1944) 24 Cal.2d 274, 279.)

ANALYSIS

I. Mandatory Relief

Plaintiff contends that the mandatory provision of Code of Civil Procedure section 473, subdivision (b), requires the Court to vacate the dismissal, because the application is timely, is in proper form, and is accompanied by counsel's sworn affidavit of fault, and because counsel's neglect in fact caused the dismissal.

The provision applies to a default entered by the clerk, a resulting default judgment, and a dismissal. (Code Civ. Proc., § 473, subd. (b).) “Under our reading of amended section 473, a plaintiff seeking relief is granted ‘comparable’ relief to that obtained by a defaulting defendant. Thus, a default judgment is entered when a defendant fails to appear, and, under section 473, relief is afforded where the failure to appear is the fault of counsel. Similarly, under our view of the statute, a dismissal may be entered where a plaintiff fails to appear in opposition to a dismissal motion, and relief is afforded where that failure to appear is the fault of counsel.” (*Peltier v. McCloud River R.R. Co.* (1995) 34 Cal.App.4th 1809, 1820-1821.) Thus, the dismissals that the Legislature brought within the provision are “only those dismissals which occur through failure to oppose a dismissal motion — the only dismissals which are procedurally equivalent to a default.” (*Id.* at p. 1817; accord, *Leader*, *supra*, 89 Cal.App.4th at p. 620.)

Gotschall v. Daley (2002) 96 Cal.App.4th 479 applied that limit to a dismissal entered on the day of trial. The defendant there filed a motion in limine to exclude causation testimony, because the plaintiff had not disclosed his treating neurosurgeon as an expert. On the day of trial the plaintiff asked for a continuance, because that witness was out of the country. The trial court held a continuance barred by the expert disclosure statute and granted the defendant's oral motion to dismiss. (*Id.* at p. 482.) The Court of Appeal reversed the order granting relief. “Counsel did not fail to oppose the dismissal motion. Plaintiff had an opportunity to contest the dismissal.” (*Id.* at p. 484.) “‘Day in court’ does not guarantee a trial on the merits, but, rather, is interpreted to confer an opportunity to present evidence and argument in opposition to a motion to dismiss.” (*Ibid.*)

The Court of Appeal applied that understanding to a Song-Beverly action in *Hernandez v. FCA US LLC* (2020) 50

Cal.App.5th 329. Counsel there let pass the deadline the trial court had set for a motion for attorney fees, and the court dismissed the action. The Court of Appeal affirmed the denial of mandatory relief. The dismissal followed from the completed settlement rather than from counsel's error, and the plaintiff had appeared, litigated, and settled as the prevailing party. Counsel's error "did not deprive Hernandez of her "day in court."" (Id. at p. 338, quoting *Leader*, supra, 89 Cal.App.4th at p. 621.)

Here, Plaintiff appeared at the hearing and asked for the relief that would have avoided the dismissal. Attorney Camilo Fernandez appeared for Plaintiff at the May 12, 2026 Final Status Conference and Jury Trial and, according to his colleague's declaration, requested a continuance because trial counsel was unavailable. (Chae Decl., ¶ 6; Mot., at p. 6:7-11.) The minute order records an appearance for Plaintiff. (Minute Order, May 12, 2026.) The Court found that Plaintiff was not ready for trial and granted Defendant's oral motion to dismiss instead. (Ibid.; see Mot., at p. 6:9-11; Quezada Decl., ¶ 8.) Thus, counsel did not fail to oppose the dismissal, and the neglect that Plaintiff identifies is a failure of preparation rather than a failure to appear. The Court also notes that the record does not include a declaration from the attorney who appeared for trial on behalf of Plaintiff, and there is no transcript of the proceedings to confirm that counsel requested a continuance as opposed to reporting that Plaintiff was not ready for trial, which is what the Court recorded in the minute order.

Plaintiff's reliance on *Yeap v. Leake* (1997) 60 Cal.App.4th 591 and *Brown v. Williams* (2000) 78 Cal.App.4th 182 is misplaced. (Mot., at pp. 2:23-24, 10:6-7.) Neither the plaintiff nor her counsel appeared at the judicial arbitration hearing in *Yeap*, and the arbitrator entered a zero award. The court treated the resulting judgment as analogous to a default because it followed a failure to appear and litigate. (*Yeap*, at p. 601.) *Brown* is the other side of that line. The plaintiff and her attorney both appeared at the arbitration, and counsel's error came afterward, in failing to make a timely request for a trial de novo. The court held that the plaintiff "had her day in court," and that "an attorney's affidavit of fault does not entitle the moving party to relief" in those circumstances. (*Brown*, at p. 188.)

Plaintiff also relies on *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1148 (*Younessi*). The

dismissal there “resulted from an order granting Camhi’s ex parte application for entry of a dismissal, without any opposition from plaintiffs that would allow the trial court to evaluate why they had failed to timely file an amended complaint.” (Ibid.) On those facts the court held the dismissal “the procedural equivalent of a default judgment.” (Id. at pp. 1148-1149.) Here, Defendant asked for dismissal in open court, Plaintiff was present, and the Court heard Plaintiff before ruling.

Accordingly, the mandatory provision of section 473, subdivision (b), does not apply to this dismissal, and Plaintiff must satisfy the discretionary provision.

II. Reasonable Time

Plaintiff contends that the application is timely because it was filed within six months of the dismissal.

Defendant argues that Plaintiff’s counsel was not diligent, and directs that argument to the period before the dismissal.

The Court dismissed the action on May 12, 2026, and Plaintiff filed this Motion on August 6, 2026. (Minute Order, May 12, 2026; Chae Decl., ¶ 3; Mot., at pp. 2:5-7, 4:4.) The interval is 86 days.

Subdivision (b) sets two limits and not one. An application “shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) “The six months’ limitation there provided is simply a limitation upon the power of the court to grant any relief, regardless of any question either as to the merits of the application, or as to whether or not the application was made within what might be held to be a reasonable time under the circumstances. Under this statute, in addition to being made within the six months’ period, the application must be made within ‘a reasonable time,’ and what is a reasonable time in any case depends upon the circumstances of that particular case.” (Benjamin v. Dalmo Mfg. Co. (1948) 31 Cal.2d 523, 528 (Benjamin), quoting Smith v. Pelton Water Wheel Co. (1907) 151 Cal. 394, 397.)

Whether an application was made within a reasonable time “depends primarily on the facts and circumstances of each individual case, but

definitively requires a showing of diligence in making the motion after the discovery of the default.” (Stafford v. Mach (1998) 64 Cal.App.4th 1174, 1181 (Stafford).) “If there is a delay in filing for relief under section 473, the reason for the delay must be substantial and must justify or excuse the delay.” (Ibid.) Moreover, this Court makes the diligence determination. “Whether a party has acted diligently is a factual question for the trial court.” (Huh v. Wang (2007) 158 Cal.App.4th 1406, 1420 (Huh).)

Plaintiff lists among the elements of discretionary relief an “application made within a reasonable time, not exceeding six months” and “diligence in seeking relief.” (Mot., at p. 7:10-15.) The diligence Plaintiff then briefs is diligence in prosecuting the action before the dismissal. (Mot., at p. 8:7-20.) Plaintiff briefs nothing on the interval that followed. (Mot., at p. 9:18-19.)

Plaintiff’s own authority states the requirement. A motion for relief from a dismissal must “be made within a reasonable time” after the dismissal’s entry. (Younessi, supra, 244 Cal.App.4th at p. 1145.) The “moving party ... must show diligence in making the motion after discovery of the default.” (Id. at pp. 1145-1146, quoting Kendall v. Barker (1988) 197 Cal.App.3d 619, 625.)

Here, the record fixes the delay and says nothing about its cause. First, counsel knew of the dismissal on the day it issued, because Fernandez was in the courtroom when the Court granted Defendant’s oral motion. (Chae Decl., ¶ 6; Mot., at p. 6:7-11; Minute Order, May 12, 2026.) Second, the delay is counsel’s own. Fernandez appeared at the hearing as an attorney of Plaintiff’s counsel’s firm, and the same firm filed this Motion. (Chae Decl., ¶¶ 1, 6.) Neither party attributes any part of the interval to Plaintiff personally. Finally, neither Plaintiff nor counsel says what counsel did during those 86 days or what circumstance explains them.

Accordingly, the Court concludes that Plaintiff has not shown that this application was made within a reasonable time. The Court declines to grant relief under section 473, subdivision (b), on this record.

CONCLUSION

The Motion for Relief from Dismissal is denied.